

THE FORGOTTEN HALF OF THE PATENT CLAUSE

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“The Original US Constitution — Article I, Section 8, Clause 8”

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Every spoke is an American denied the same thing by the same wall. The Constitution’s “limited Times” was written in 1787, 2.5 years before the first patent law, so it binds every federal rule that touches an invention — not patent law alone. When a patent expires, the design belongs to the public. Since about 1970, federal rules have required remakes to meet the newest standards instead of the original ones.